

		and that the debtor expressly or impliedly promised to pay to the creditor the amount thus determined to be owing. (<i>Id.</i>) Plaintiff did not allege sufficient facts to state this cause of action. Plaintiff alleges Plaintiff invoiced amounts to Defendant regarding vehicles Plaintiff towed and stored, and that Defendant accepted the amounts; however, there is no allegation that Defendant acknowledged Defendant was responsible for paying the amount (i.e. that Defendant was the debtor). Plaintiff alleges Defendant agreed to pay the amounts pursuant to the terms of the agreement. (FAC, ¶¶ 37-40.) However, as discussed above, the agreement does not include any express agreement by Defendant to pay. Rather, the agreement expressly provides Defendant is not responsible for payment for services Plaintiff provides under the agreement. (<i>Id.</i>, Exhibit 1, Attachment A, Section 18.2.) In addition, although Plaintiff alleges there is an implied agreement to pay, Plaintiff does not allege facts to support such an implied agreement, especially in light of section 18.2 in the attachment to the agreement. Plaintiff did not allege sufficient facts to show the relationship of a debtor and creditor. Accordingly, the demurrer is sustained. Although Plaintiff requests leave to amend, Plaintiff did not make any showing that Plaintiff is able to properly amend this cause of action to state a cause of action for account stated. Accordingly, Plaintiff's request for leave to amend is denied. In light of this ruling, the Case Management Conference is vacated. Defendant shall give notice.
107	2024-01444402 Orona vs. Efficient Builders Corp.	1. Motion to Compel Arbitrations 2. Review Hearing The unopposed motion by Defendant Solar Mosaic LLC ("Mosaic") for an order compelling arbitration and staying this action as to Mosaic is granted. The action as to Mosaic is stayed. (Code Civ. Proc., § 1281.4.) The Court sets an ADR Review Hearing for July 26, 2027 at 10:00 a.m. in Department C27. Should Plaintiff appear, Plaintiff should be prepared to address the status of service on Defendant Efficient Builders Corp. Should Plaintiff not appear, the Court sets an Order to Show Cause as to why Defendant Efficient Builders Corp. should not be dismissed for January 4, 2027 at 10:00 a.m. in Department C27. In the event Plaintiff fails to serve Defendant Efficient Builders Corp. by this date, the Court will dismiss the action against such Defendant pursuant to CCP section 583.420(a)(1). Mosaic shall give notice of this ruling. The clerk is ordered to give notice of the OSC.
108	2025-01469228 Little vs. Volkswagen Group of America, Inc	1. Motion for Attorney Fees 2. Order to Show Cause re: Dismissal on Settled Case The unopposed motion by Plaintiff Evevon Lynette Little ("Plaintiff") for attorneys' fees is granted. However, the Court denies the request for a multiplier. Additionally, the Court denies the request of \$4,000 in anticipated fees for reviewing the opposition, preparing a reply, and attending the hearing. The motion was not opposed.